

As Defendants' motion is limited to one for summary judgment, it can only be granted if Defendants show that "the action has no merit," i.e. that every one of the causes of action is without merit. If a single cause of action is viable, the entire motion for summary judgment fails. (Code Civ. Proc. § 437c(c).); *All Towing Services LLC v. City of Orange* (2013) 220 Cal.App.4th 946, 954 ["Summary judgment is proper only if it disposes of the entire lawsuit."])

As Defendants have failed to meet their burden regarding the breach of contract cause of action, the Court need not analyze the common counts cause of action. Because there is a single viable cause of action, the motion for summary judgment must be denied in its entirety.

Conclusion

Defendants' Motion for Summary Judgment is **denied**.

4. 9:00 AM CASE NUMBER: C24-01590

CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO

*HEARING ON MOTION IN RE: PROTECTIVE ORDER

FILED BY: JURADO, ANTHONY

TENTATIVE RULING:

Notice to withdraw the motion was filed. Hearing vacated.

5. 9:00 AM CASE NUMBER: C24-01666

CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER

HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT

FILED BY: SAW, AMAN, MD

TENTATIVE RULING:

Before the Court is Defendants Aman Saw, M.D., John Muir Health, John Muir Cardiovascular Medical Group, Inc.'s (collectively "JMH Defendants") demurrer. The demurrer relates to Plaintiff Niraj Gandhi's ("Plaintiff" or "Gandhi") Third Amended Complaint for (1) Medical Negligence, (2) Fraud and Misrepresentation, and (3) Intentional Infliction of Emotional Distress.

JMH Defendants demurrer to Plaintiff's Third Amended Complaint in its entirety on the grounds that the Doe amendment adding them does not relate back to

the Initial Complaint, rendering the Medical Negligence and IIED claims untimely, and that the Third Amended Complaint otherwise fails to state facts sufficient to constitute any of the causes of action against them.

Plaintiff, who is an *in propria persona* litigant, opposes Defendants' demurrer on the grounds that the Doe amendment relates back, the statute of limitations does not bar claims due to delayed discovery and fraudulent concealment, Plaintiff has adequately pleaded all causes of action, and JMH Defendants failed to properly engage with the meet-and-confer process.

Defendants' demurrer is **SUSTAINED** as to all three causes of action **WITH LEAVE TO AMEND**.

I. Request For Judicial Notice

In support of their demurrer, JMH Defendants request judicial notice of the Initial Complaint in this litigation and each of the three subsequent amendments, as well as the Doe Amendment filed by Plaintiff November 14, 2025. (Request for Judicial Notice Filed ISO Demurrer to Third Amended Complaint ("RJN"), Exhibits A-E.)

Each of these items is a record of this Court. Judicial notice of the records of "any court of this state" is authorized under Evidence Code section 452(d). (Evid. Code, § 452(d)(1).) The Court takes judicial notice of the existence of identified court records, the fact that they were filed or issued, the dates reflected therein, the language used in those documents, and the orders and rulings they contain, but not of the truth of any hearsay statements or disputed factual matters asserted within them. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) Only matters that are reasonably beyond dispute are subject to judicial notice. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 835.)

The unopposed request for judicial notice is **GRANTED**.

II. Factual Allegations and Background

This case arises out of a dispute over the alleged loss of medical records.

Niraj Gandhi underwent a left heart catheterization and angiogram performed by cardiologist Dr. Aman Saw (“Dr. Saw”) at the San Ramon Regional Medical Center (“SRRMC” or “the hospital”) Catheterization Lab (“Cath Lab”) on November 24, 2022. (Third Amended Complaint (“TAC”) at 2:24-25; 5:1-7:5.; Ex. A, B.) Immediately after the procedure, Gandhi asked to be provided with the images and video captured during the procedure and Dr. Saw told him the hospital would produce it on a CD with his discharge packet. (*Id.* at 7:5-11.) Gandhi did not receive a CD upon discharge, however. (*Ibid.*)

On November 25, 2022, Gandhi sent Dr. Saw a message following up about the missing CD and received no reply. (TAC at 7:12-15.) At a December 2, 2022, follow-up appointment with Dr. Saw, Gandhi asked Dr. Saw to show him the images and video from the procedure, but Dr. Saw explained that the images and video were not accessible from his office, and that only SRRMC had access to them, so Gandhi would need to contact the hospital to obtain them. (*Id.* at 7:19-24.)

On November 28, 2022, and again on December 1, 2022, Gandhi called the hospital’s medical records department to inquire about the CD. (TAC at 7:16-18.) In his attempt to obtain the images and video from the angiogram procedure performed at SRRMC, he picked up a CD from the hospital on December 7, 2022, and another on December 15, 2022. (TAC at 8:1-6.) In both instances, the discs he received did not contain the images or video from the procedure. (*Id.* at 8:1-14.)

Gandhi ultimately sought a second opinion on his heart condition from Dr. Ramesh Veeragandham (“Dr. Veeragandham”) in June of 2023. (TAC at 3:12-13; 8:20-21.) Dr. Veeragandham advised Plaintiff that in order for him to determine whether an additional procedure was necessary, he would need to review the angiogram imaging, and, in its absence, a repeat procedure would be required. (*Id.* at 20:1-6) Dr. Veeragandham attempted to access the CDs Plaintiff provided from the hospital and, finding no images or video, Dr. Veeragandham contacted

the Cath Lab at SRRMC to seek the imaging from the hospital directly. (TAC at 8:20-27.) Dr. Veeragandham made the following note July 6, 2023: “I tried to access the films in San Ramon but somehow there was no data. After back-and-forth, it was determined that the films were lost permanently.” (TAC at 9:1-6.)

Gandhi contacted Dr. Saw on July 7, 2023, again asking for his help in obtaining the images and video from the procedure. (TAC at 9:7-15.) Dr. Saw replied: “I am quite surprised that the hospital had lost your records. ... The hospital medical record staff is trying to figure out what happened.” (TAC at 9:7-15.)

Gandhi then sent a subsequent message to Dr. Saw on July 14, 2023, “indicating to him how much pain and suffering [he] was going through because of someone else’s mistakes” and asking for the names of employees at SRRMC’s Cath Lab. (*Id.* at 9:18-22.)

On July 17, 2023, Gandhi received a phone call from Giovana Meza, PA-C, from John Muir Cardiovascular Services, who said she had spoken to Cath Lab staff and the Cath Lab supervisor, Mike Miller, regarding the missing records. (TAC at 9:23-25.) She told Gandhi that the computer system that stores and backs up images for the Cath Lab had “gone down” on the day of Gandhi’s procedure, causing the images to not be saved. (*Id.* at 9:23-28.) According to the Cath Lab staff, the problem was escalated to the computer company and the corporate hospital system, Tenet. (*Id.* at 3:26-4:1.)

On August 9, 2023, Gandhi underwent a second left heart catheterization, this time performed at John Muir Hospital in Concord by Dr. Christopher Chen. (TAC at 10:6-8.) Two days later he began to feel a “very strong burning sensation and numbness in [his] thigh and upper leg around the incision from where the catheterization was performed.” (*Id.* at 10:11-15.) He was subsequently diagnosed with a femoral nerve injury, likely caused by the second angiogram. (*Id.* at 4:8-14, 10:22-11:2.)

Gandhi filed the instant suit on July 1, 2024. SRRMC demurred and moved to strike, prompting a First Amended Complaint. Two subsequent pairs of demurrers and motions to strike by SRRMC led to second and third amended

complaints; the operative Third Amended Complaint was filed September 5, 2025.

On January 30, 2026, the Court overruled in part and sustained in part a fourth motion to strike from SRRMC. The Court found insufficient grounds to strike Gandhi's Third Amended Complaint in its entirety as untimely, but sustained the motion in part on the grounds that he failed to state facts sufficient to state a claim for punitive damages against SRRMC.

Gandhi filed a Doe amendment adding Aman Saw, M.D., John Muir Cardiovascular Services, and John Muir Health as Does one through three, respectively, on November 14, 2025. JMH Defendants filed the instant motion and its accompanying motion to strike on January 20, 2026.

III. Meet and Confer

California Code of Civil Procedure section 430.41(a) requires the parties to meet and confer in good faith before the filing of a demurrer in an attempt to informally resolve the objections raised therein.

Here, counsel for the JMH Defendants filed a declaration stating that, after obtaining a 30-day extension of time in which to file a responsive pleading, defense counsel and Plaintiff participated in a telephonic conference on January 20, 2026, during which they discussed relation-back, statute of limitations, and fact-pleading issues raised by the instant demurrer. (Declaration of Patrick Goonan ISO Demurrer ("Goonan Dec.") ¶¶ 5-7.)

Plaintiff, in turn, asserts the meet and confer process was not conducted in good faith because defense counsel did not initiate contact within the extension period, did not provide the promised detailed written statement before the call, waited until the day the responsive pleading was due to discuss the issues, and "no meaningful attempt to resolve issues was made." (Declaration Re: ISO Opposition to Demurrer to Third Amended Complaint ("Gandhi Dec.") ¶¶ 5-9.) Defense counsel likewise acknowledges the office intended to send a more detailed statement before the call but was "unable to complete" it. (Goonan

Dec. ¶ 6(e).)

The record therefore suggests the meet-and-confer process was imperfect. However, the parties did in fact confer telephonically before the demurrer was filed, and any insufficiency in the meet-and-confer process is not grounds to overrule a demurrer. (Code Civ. Proc., § 430.41 (a)(4).) Accordingly, the Court considers the instant motion on the merits.

IV. Legal Standard

A demurrer is properly sustained when "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10(e).) In ruling on a demurrer, the court assumes the truth of properly pleaded factual allegations, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.)

A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

The complaint must be "liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc. § 452.) "[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated." (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

V. Analysis

As an initial matter, Plaintiff's opposition contains repeated citation problems.

The briefing relies on numerous authorities for broad propositions concerning demurrer practice, relation back, tolling, and pleading standards; many, if not most, of those citations are inaccurate, inapposite, or materially overstate the holdings of the cited cases. The Court therefore does not treat Plaintiff's citation string as independently persuasive and instead evaluates each issue under the governing authorities and the pleaded facts.

A. Relation Back

A plaintiff who adds a new defendant after the limitations period ordinarily cannot rely on the filing date of the original complaint. (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176.) But under Code of Civil Procedure section 474, an amendment substituting a Doe defendant will relate back if the plaintiff was genuinely ignorant, at the time of the filing, of the defendant's identity or of facts giving rise to the defendant's liability. (Code Civ. Proc., § 474; *Woo, supra*, 75 Cal.App.4th at 176-177; *Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal.2d 596, 599; *GM Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 593-594.)

i. California Code of Civil Procedure Section 474

Section 474 is construed liberally, and the relevant inquiry is what facts the plaintiff actually knew at the time the original complaint was filed, not whether the plaintiff exercised reasonable diligence or appreciated the legal significance of those facts. (*GM Corp, supra*, 48 Cal.App.4th at 588, 593-594; *Irving v. Carpentier* (1886) 70 Cal. 23, 26; *Hahn v. New York Air Brake LLC* (2022) 77 Cal.App.5th 895, 900.) Still, the claimed ignorance of the defendant's identity in the original complaint must be real and in good faith, section 474 does not apply where the omission is "merely a subterfuge for avoiding the requirements of section 474" or where plaintiff already knew enough facts to state a cause of action against the later-added defendant, even if additional details were learned later. (*Woo, supra*, 75 Cal.App.4th 169, 177; see also *Scherer v. Mark* (1976) 64 Cal.App.3d 834, 841; *Dover v. Sadowinski* (1983) 147 Cal.App.3d 113, 117-118.)

The attempt to file an amendment under section 474 should be honest and in good faith. The question of the plaintiff's good faith in this regard is for the determination of the trial court. [Citations.] The pivotal question in this regard is 'did plaintiff know *facts*' not 'did plaintiff know or believe that she had a cause of action based on those facts?'

(*Scherer, supra*, 64 Cal.App.3d at 841.)

i. Dr. Saw

Here, the Initial Complaint makes clear that Plaintiff was aware, before filing suit, of Dr. Saw's role and of the involvement of his office staff in the events underlying the action.

The first sentence of Gandhi's "Facts and Timeline" section in his Initial Complaint states that "[o]n Nov 24th 2022, the [sic] I had a Left Heart Catheterization (angiogram) performed by Dr. Aman Saw at the San Ramon Regional Medical Center (SRRMC)." (Initial Complaint ("Initial Compl.") at 2:13-14.) Gandhi sent a message to Dr. Saw the following day, according to the Initial Complaint, inquiring after the images from the angiogram, which had not been provided after the procedure as promised. (*Id.* at 2:16-19.) The Initial Complaint then explains that Gandhi took CDs subsequently provided to him by SRRMC to both his primary care physician and Dr. Saw in a bid to access the images purportedly on those discs, but neither doctor's office was able to access the images and "I was told since the procedure was done at the hospital it was the hospital's responsibility to provide the images to me not theirs." (*Id.* at 3:9-11.)

After seeking a second opinion from another cardiologist, Gandhi reached out again to Dr. Saw's office on July 17, 2023, in another attempt to enlist Dr. Saw's help in obtaining the lost imaging from the November 2022 angiogram.

"Giovana Meza, from Dr. Saw's office called me to inform me that she had spoken several times with the Cath Lab staff and the images were not obtainable." (Initial Compl. at 3:27-28.) The Initial Complaint goes on to allege

that “[f]or almost a year, I was lied to by the Defendant’s staff.” (*Id.* at 5:4-5.)

These allegations show Plaintiff already knew, when the Initial Complaint was filed, of facts connecting Dr. Saw and his office to the missing-imaging issue. On this record, Plaintiff has not shown genuine ignorance within the meaning of section 474.

i. John Muir Cardiovascular Services and John Muir Health

The question is somewhat closer as to John Muir Cardiovascular Services and John Muir Health, because the Initial Complaint does not discuss those entities in the same detail as it discusses Dr. Saw and his office. Nevertheless, the Initial Complaint does not suggest Gandhi was wholly ignorant of the John Muir entities when he filed suit, either. He expressly alleged the following in his Initial Complaint:

Since by this point I had lost all my trust in the John Muir Health Network to provide proper medical care I went to the Cardiologists at Stanford Medical who were not satisfied with the treatment and Angiogram reports hence they had to perform yet another Angiogram and they continue to treat me now.

(Initial Compl. at 4:16-19.)

This indicates that Gandhi understood, before filing suit, that the care he received from Dr. Saw was connected in some way to the “John Muir Health Network. The Initial Complaint already alleged Plaintiff knew Dr. Saw performed the angiogram, that Plaintiff communicated with Dr. Saw about the missing images, and that Dr. Saw’s office later communicated with Cath Lab staff regarding those same missing images. Thus, to the extent Plaintiff later added John Muir Cardiovascular Services and John Muir Health based on those same underlying events, the present record does not itself show genuine ignorance of their connection to the case when the Initial Complaint was filed. Section 474 turns on a plaintiff’s actual ignorance of the relevant facts at the time of filing,

not on later refinement of theories or later appreciation of the legal significance of known facts. (*Hahn, supra*, 77 Cal.App.5th at 900; *Scherer, supra*, 64 Cal.App.3d at 841; *Dover, supra*, 147 Cal.App.3d at 117-118.)

Accordingly, on the present record, Gandhi has not shown entitlement to relation back under section 474 as to John Muir Cardiovascular Services and John Muir Health.

/. No New Liability Facts

Plaintiff in his Doe Amendment states as follows:

Plaintiff was ignorant of the true names and capacities of these defendants at the time of filing the Third Amended Complaint. Plaintiff discovered the facts giving rise to a claim against these defendants during discovery, including but not limited to, the certified deposition of Mike Miller on September 24, 2025, and an investigation into the corporate relationship between AMAN SAW, M.D., JOHN MUIR CARDIOVASCULAR SERVICES, and, JOHN MUIR HEALTH.

(Doe Amendment ¶4.)

Plaintiff's opposition similarly alludes to newly discovered facts arising from the Miller Deposition and subsequent investigation, asserting that these facts establish the JMH Defendants' role in the events at issue and support relation back.

Plaintiff discovered Defendants' role during the September 24, 2025 deposition and subsequent investigation. Prior representations by Dr. Saw attributed responsibility solely to SRRMC. These allegations establish genuine ignorance, and relation back applies. (*Smeltzley v. Nicholson Mfg. Co.* (1977))

18 Cal.3d 932, 937.)

(Opposition Filed Re: Demurrer to Third Amended Complaint; MPA (“Opp. Dem.”) at 7:17-21.)

But Plaintiff does not identify what the newly-discovered facts were, does not explain how they differed from the facts already alleged in the Initial Complaint, and does not show that they were the first facts connecting John Muir Health to the events at issue. On this record, a general reference to deposition testimony and a subsequent investigation is too vague to establish genuine ignorance within the meaning of section 474.

In addition, Plaintiff’s assertion of ignorance is difficult to reconcile with the allegations of the Initial Complaint. Plaintiff expressly identified Dr. Aman Saw as the provider who performed his angiogram and referenced Both Dr. Saw and the John Muir Health Network generally in connection with his post-procedure care. These allegations demonstrate that Plaintiff was aware of both the relevant individuals and the associated health system at the time of filing, even if he had not yet fully developed a legal theory against them. Section 474 does not apply where a plaintiff knew the facts giving rise to a cause of action but simply failed to name the defendant.

Moreover, the cited authority does not help Plaintiff. *Smeltzley* neither addresses the section 474 question presented here – whether Plaintiff was genuinely ignorant of facts giving rise to a cause of action against the JMH Defendants at the time of the Initial Complaint – nor does it stand for the proposition that Plaintiff’s unique allegations establish genuine ignorance such that relation back applies.

Thus, on this record, Plaintiff fails to demonstrate that he is entitled to rely on section 474 for the purposes of his Doe amendment.

/. Statutes of Limitation

Because Plaintiff has not shown relation back under Code of Civil Procedure section 474 as to the JMH Defendants, the timeliness of the claims against

those Defendants is measured from the date they were added, November 14, 2025, rather than from the filing of the Initial Complaint.

To the extent that Plaintiff asserts a claim for Medical Negligence against healthcare providers, that claim is governed by Code of Civil Procedure section 340.5, which requires commencement within three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. (Code Civ. Proc., § 340.5.)

Here, the first time Plaintiff alleges he was explicitly told that the imaging was not recorded during his angiogram procedure was July 17, 2023, when Dr. Saw's PA, Giovana Meza, told Gandhi that the computer system that stores and backs up images for the Cath Lab had "gone down" on the day of Gandhi's procedure, causing the images to not be saved. (TAC at 9:23-28.) Thus, Gandhi's claim of Professional Negligence against the JMH Defendants accrued July 17, 2024, one year after he was made aware of that fact and over a year before Gandhi sought to add the JMH Defendants.

Gandhi's claim for Intentional Infliction of Emotional Distress ("IIED") is governed by Code of Civil Procedure section 335.1; under that statute, an IIED claim is subject to a two-year limitations period. (Code Civ. Proc., § 335.1.)

Here, Gandhi alleged he sent a message to Dr. Saw on July 14, 2023, "indicating to [Dr. Saw] how much pain and suffering [Gandhi] was going through because of someone else's mistakes" and asking for the names of employees at the Cath Lab. (TAC at 9:18-22.) And, as noted *ante*, he was first explicitly made aware of the fact that the computer system had gone down during his procedure, on July 17, 2023. Using either date, the limitations period ended in July of 2025, four months before Plaintiff filed his Doe Amendment seeking to add the JMH Defendants.

Absent relation back or some other adequately pleaded basis for tolling or delayed accrual, both the Professional Negligence and IIED claims appear

untimely as against the JMH Defendants. The Court is skeptical that Plaintiff can cure this defect, given the facts already alleged in the Initial Complaint. Nonetheless, because this is the first demurrer directed to the later-added defendants and Plaintiff may be able to allege a genuinely new fact supporting section 474, leave to amend is accordingly granted.

Because leave to amend will be granted on the timeliness issue, the Court briefly addresses JMH Defendants' remaining arguments related to what they contend are inadequately pled causes of action.

B. Intentional Infliction of Emotional Distress ("IIED")

Even, assuming *arguendo*, that Gandhi could allege facts sufficient to invoke section 474, the Third Amended Complaint still fails to state facts sufficient to constitute a cause of action for IIED.

A claim for IIED requires (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) For conduct to be outrageous it must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ibid.*) IIED liability "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.)

The Third Amended Complaint alleges JMH Defendants failed to provide Gandhi with the angiogram imaging, repeatedly told him the records were on the CDs or otherwise obtainable, and caused delay, frustration, distress, and further medical consequences. Accepting those allegations as true, they may support an inference of bureaucratic dysfunction, recordkeeping failures, or repeated misinformation, but they do not, as pleaded, rise to the level of conduct extreme and outrageous as to exceed all bounds of decency usually tolerated in a civilized community. (*Christensen, supra*, 54 Cal.3d at 903.) At most, these allegations describe mishandling of records and repeated inaccurate

assurances, not the sort of atrocious or utterly intolerable conduct required for IIED.

The Third Amended Complaint does not allege facts showing that JMH Defendants acted with the intention of causing Gandhi emotional distress, as opposed to acting carelessly or incompetently in handling or communicating about angiogram imaging. (*Davidson v. City of Westminster* (1982) 32 Cal.3d 197 [plaintiff failed to state a claim for IIED because defendants lacked intent to cause plaintiff harm where defendant police officers failed to intervene or protect plaintiff when they observed an assault suspect attack and stab her in a public laundromat while defendant police officers had the premises under surveillance].)

Plaintiff argues in his opposition that

At the pleading stage, [JMH Defendants'] course of conduct plausibly exceeds all bounds tolerated in a civilized society" and that "[t]he doctor-patient relationship is strictly governed by a duty of absolute candor. A patient entrusts a cardiologist with their life and rightfully expects complete, unvarnished honesty regarding their own medical records. For a medical professional and healthcare facility to actively deceive a vulnerable cardiac patient about the existence of their surgical imaging is the very definition of extreme and outrageous conduct.

(Opp. Dem. at 10:23-11:2.)

For these propositions Gandhi cites *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050, and *Bundren v. Superior Court* (1983) 145 Cal.App.3d 784, 789. However, neither of these cases stands for the above propositions.

Hughes states the general rule governing outrageous conduct stated *ante*; it does not involve deception by medical providers regarding surgical imaging, and

it does not hold that comparable conduct is outrageous as a matter of law. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.) *Bundren*, meanwhile, involved abusive post-treatment billing and collection conduct by hospital staff, not concealment of surgical imaging, and it likewise does not announce the categorical rule that Gandhi attributes to it. (*Bundren v. Superior Court* (1983) 145 Cal.App.3d 784, 789.)

Accordingly, on the record as presently alleged, the elements of IIED are not met and, as such, the demurrer is **SUSTAINED WITH LEAVE TO AMEND**.

C. Medical Negligence

Even, assuming *arguendo*, that Gandhi could allege facts sufficient to invoke section 474, the Third Amended Complaint still fails to state facts sufficient to constitute a cause of action for Medical Negligence.

Medical Negligence is a form of Negligence. (*Massey v. Mercy Medical Center Redding* (2009) 180 Cal.App.4th 690, 694; *Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 997-1001.) Plaintiffs must make a showing of four elements to support a claim for Negligence: (1) the defendant had a legal duty of care to the plaintiff; (2) the defendant breached that duty; (3) the plaintiff suffered an injury because of the defendants' breached duty; and (4) damages. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 141.)

A medical provider is negligent "if he or she fails to meet the standard of care—that is, fails to use the level of skill, knowledge, and care that a reasonably careful [medical provider] would use in similar circumstances." (*Massey, supra*, (2009) 180 Cal.App.4th at 694.) "Duty of care in a malpractice action "can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson's common knowledge." (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968.)

Here, the Third Amended Complaint alleges, in substance, that JMH Defendants failed to provide or preserve angiogram images, repeatedly told Gandhi the

images were available on CDs or were otherwise obtainable, and therefore caused delay, frustration, and further medical consequences. But those allegations do not identify facts showing how any individual JMH Defendant breached the applicable professional standard of care. As pleaded, the allegations describe recordkeeping failures, inaccurate assurances, or administrative mishandling of records, rather than facts a breach of the applicable professional standard of care. (*Massey, supra*, (2009) 180 Cal.App.4th at 694.)

The Third Amended Complaint also does not adequately allege causation. Although Gandhi alleges delay and further injury, he does not plead nonconclusory facts showing that any act or omission by JMH Defendants was a substantial factor in causing a distinct compensable injury. “In any negligence case, the plaintiff must present evidence from which a reasonable fact finder may conclude that defendant's conduct probably was a substantial factor in bringing about the harm.” (*Lineaweaver v. Plant Insulation Co.* (1995) 31 Cal.App.4th 1409, 1416.)

Accordingly, on the record as presently alleged, the elements of Medical Negligence are not met and, as such, the demurrer is **SUSTAINED WITH LEAVE TO AMEND**.

D. Fraud

The elements of Fraud are: a representation, usually of fact, which is false, knowledge of its falsity, intent to defraud, justifiable reliance upon the misrepresentation, and damage resulting from that justifiable reliance. (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 72-73; Civ. Code, §§ 1709, 1710.)

Fraud must be pled specifically; general and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) This necessitates the pleading of facts showing how, when, where, to whom, and by what means the representations were tendered. (*Stansfield, supra*, 220 Cal.App.3d at 73.)

Here, Gandhi's Fraud theory appears to be predicated on the allegation that Defendants repeatedly represented to Plaintiff that his angiogram images had been recorded, existed, and were viewable on CDs provided by SRRMC's medical records department when in fact they had not been recorded, did not exist, and were not contained on the provided CDs. (TAC at 14:16-21.) Plaintiff does allege a number of specific communications through the Third Amended Complaint's timeline, including the name of the employee to whom he spoke in Medical Records (Monica N.), as well as his conversations with Dr. Saw concerning the missing angiogram images and whether those images were obtainable. (*Id.* at 7:16-25.) Thus, the defect is not simply that the Third Amended Complaint fails to identify any speaker or statement. Even so, the Fraud claim remains insufficient because the pleading does not allege facts showing knowledge of falsity, intent to induce reliance, or justifiable reliance.

First, the Third Amended Complaint does not adequately plead scienter. Although Gandhi alleges he was told images were on CDs or otherwise obtainable, the pleading does not allege facts showing any identified speaker knew these statements were false when made. At most, the allegations support an inference of mistake, confusion, internal miscommunication, or negligent record handling. Fraud, however, requires more than inaccurate statements or poor recordkeeping; it requires facts showing the speaker knew the representation was false. (*Universal By-Products, Inc. v. City of Modesto* (1974) 43 Cal.App.3d 145, 151.)

Second, the Third Amended Complaint does not adequately plead intent to defraud. Fraud requires facts showing the defendant made the representation with the intent to induce plaintiff's reliance. (*Lazar, supra*, 12 Cal.4th at 638.) Here, the pleading alleges Gandhi was given incorrect information and repeated assurances about the images, but it does not allege facts showing those statements were made as part of a deliberate plan to deceive Gandhi, rather than as a result of error, bureaucratic confusion, or a failure to locate or produce records.

Third, the Third Amended Complaint does not adequately plead justifiable reliance. A fraud claim requires allegations that a plaintiff actually and justifiably relied on the misrepresentation and suffered resulting damage. (*Lazar, supra*, 12 Cal.4th at 638.) Here, while Gandhi alleges delay, distress, and additional medical consequences, the pleading does not clearly allege that he changed his position in justifiable reliance on a particular knowingly false statement, as opposed to suffering harm from the underlying absence of the images themselves. In other words, the Third Amended Complaint does not clearly allege damages connected to reliance on specific fraudulent statement(s) as opposed to the broader problem that the angiogram records were unavailable.

Accordingly, on the record as presently alleged, the elements of Fraud are not met and, as such, the demurrer is **SUSTAINED WITH LEAVE TO AMEND**.

VI. Conclusion

Accordingly, because this is the first challenge to the timeliness and sufficiency of these claims as against the JMH Defendants, and the Court cannot conclude at this stage that amendment would necessarily be futile, the demurrer to all three causes of action is **SUSTAINED WITH LEAVE TO AMEND**.

Plaintiff has 15 days from notice of entry of this order to file and serve an amended pleading.

6. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: STRIKE 3RD AMENDED COMPLAINT
FILED BY: SAW, AMAN, MD
TENTATIVE RULING:

Before the Court is Defendants Aman Saw, M.D., John Muir Health, John Muir Cardiovascular Medical Group, Inc.'s (collectively "JMH Defendants") motion to strike. The motion to strike relates to Plaintiff Niraj Gandhi's ("Plaintiff" or "Gandhi") Third Amended Complaint for (1) Negligence, (2) Fraud and Misrepresentation, and (3) Intentional Infliction of Emotional Distress.